

Motion to Deem Matters Admitted

Defendants Michelle Denham and Lisa Berry move for an order against plaintiff deeming requests for admission, set one, admitted. No opposition has been filed.

Defendants' request for judicial notice is granted.

The unopposed motion is granted. (Code Civ. Proc., § 2033.280.) Plaintiff Cody Ernst is deemed to have admitted defendants' requests for admissions, set one, numbers 1 through 18.

8. S-CV-0051202 Khachadourian, Gilbert Jr. v. Cook, Richard N

Defendant Verdera Community Association's Motion for Determination of Good Faith Settlement

Defendant Verdera Community Association moves for determination of good faith settlement. (Code Civ. Proc., § 877.6, subd. (a)(1).) The unopposed motion is granted. Based on the standards set forth in *Tech-Bilt v. Woodward Clyde & Associates* (1985) 38 Cal.3d 488, the settlement at issue is within the reasonable range of the settling other defendants' proportionate shares of liability for plaintiffs' injuries and therefore is in good faith within the meaning of Code of Civil Procedure section 877.6.

9. S-CV-0053223 Myatt, Wayne T v. BJs Restaurant Inc.

The demurrer to plaintiff's third amended complaint and motion to strike portions of plaintiff's third amended complaint is continued to **October 20, 2026 at 8:30 a.m. in Department 32.**

10. S-CV-0053802 Dizdarevic, Alen v. Cal. Dept. of Transport.

The two motions to compel are dropped from calendar as no moving papers were filed with the court.

11. S-CV-0053922 Barriga, Annelise v. Richmond Am. Homes

Defendant's Motion for Judgment on the Pleadings

Defendant moves for judgment on the pleadings as to plaintiff's complaint for the remaining count of negligence. Plaintiff opposes the motion.

"A motion for judgment on the pleadings is the functional equivalent of a general demurrer." (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) The grounds for the motion must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) The court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court, however, does not accept the truth of

“conclusions of fact or law, opinions, speculation, or allegations contrary to law or judicially noticed facts.” (*Spencer*, 88 Cal.App.5th at 861.)

A cause of action for negligence requires plaintiff to allege: (1) the defendant owed the plaintiff a legal duty, (2) the defendant breached the duty, and (3) the breach proximately or legally caused (4) the plaintiff's damages or injuries. (*Thomas v. Stenberg* (2012) 206 Cal.App.4th 654, 662.) Based on its review of the complaint in its entirety the court fails to sufficiently allege the necessary elements for a claim for negligence including that defendant owed plaintiff a legal duty which was breached, and which breach proximately or legally caused plaintiff's damages or injuries.

The motion is granted with leave to amend. Any amended complaint shall be filed and served on or before **September 18, 2026**.

12. S-CV-0054972 Dunk N' Run Donuts v. Toyota Motor Sales

Plaintiffs are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Attorneys' Fees

Plaintiffs move for an award of attorneys' fees in the amount of \$36,362.50 (\$34,862.50 in incurred fees and \$1,500 in anticipated fees) and costs of \$1,095.06 for a total of \$37,467.56. Defendant opposes the motion.

Defendant's objections are overruled in their entirety.

A prevailing party in an action under the Song-Beverly Consumer Warranty Act (Civ. Code, §§ 1790 et seq.) shall recover costs and expenses, including attorneys' fees actually incurred, “determined by the court to have been reasonably incurred . . .” (Civ. Code, § 1794, subd. (d).) A prevailing party includes “the party with a net monetary recovery” or one who “realized its litigation objectives,” including in instances of settlement. (Code Civ. Proc., § 1032, subd. (a)(4); *Kim v. Euromotors West/The Auto Gallery* (2007) 149 Cal.App.4th 170, 179–80.) Here, plaintiffs present evidence that the parties reached a settlement providing for defendant's buyback of the subject vehicle and that defendant would pay plaintiffs' attorneys' fees and costs actually incurred as determined by the court. (Ryu Decl., ¶¶ 2, 32.) While plaintiffs did not provide a copy of the settlement agreement, defendant concedes settlement occurred and provides a copy of the agreement. (Fisher Decl., Exh. B.) The court finds plaintiffs are the prevailing party, having obtained the objective of this litigation, and is entitled to seek an award of attorneys' fees pursuant to Civil Code section 1794(d).

The court must next address whether the request for \$36,362.50 in attorneys' fees is reasonable. Determining the reasonable amount of attorneys' fees begins with the lodestar method, that is, the number of hours reasonably expended multiplied by the reasonable hourly rate. (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095; *Serrano*